

**Court No. - 3**

**Case :-** WRIT - C No. - 4469 of 2022

**Petitioner :-** Virendra

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Manish Pandey

**Counsel for Respondent :-** C.S.C., Krishna Agarawal, Rajesh Yadav

**Hon'ble Surya Prakash Kesarwani, J.**

**Hon'ble Jayant Banerji, J.**

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

*"(i) Issue a writ order or direction in the nature of certiorari quashing the the Assesment order dated 27.11.2020, issued by the Executive Enginner, U.P. Power corporation, Ltd. Electricity Distribution block Babrala and the recovery certificate dated 27.11.2020 and 31.8.2020, issued by the Respondent no. 4.*

*(ii) Issue a writ in nature of mandamus, directing the executive engineer to consider the objection filed by the petitioner against the provisional assessment order dated 31.8.2020 and pass a fresh order of final Assessment. "*

Learned counsel for the respondent No 4 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed off giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.4 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

**Order Date :-** 20.5.2022

o.k.